

26STCV04803 26STCV04803

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MOTIONS

TO COMPEL DISCOVERY

The Court tenders the following tentative decision in the matter Havilah Tillmon v. Jesus Sotelo, Los Angeles County Superior Court case number 26STCV04803, set for hearing on September 11, 2026. Havilah Tillmon (Plaintiff) moves for orders compelling Jesus Sotelo (Defendant) to provide responses to Plaintiff's special interrogatories, set one (SPROGs) and requests for production of documents, set one (RFPs). Plaintiff also requests a total \$5,000 in sanctions. Plaintiff's motions are granted. The Court imposes \$1,200 in sanctions on Defendant's counsel.

If a party to whom interrogatories are directed fails to serve a timely response, that party waives any objection, the party making the demand may move for an order compelling response, and the Court shall impose a monetary sanction against any party who unsuccessfully opposes such a motion unless they acted with substantial justification. (Id., § 2030.290.) And if a party to whom an inspection demand is directed fails to serve a timely response, that party waives any objection, the party making the demand may move for an order compelling response, and the Court shall impose a monetary sanction against any party who unsuccessfully opposes such a motion unless they acted with substantial justification. (Id., § 2031.300.)

Here, Plaintiff filed their original complaint on February 13, 2026. They served all relevant written discovery requests via email on April 16, 2026. (Teshale Decl. ¶ 3, Ex. A.) After Plaintiff granted an extension, Defendant's responses were due on June 18, 2026. (Id. ¶¶ 5–6.) Defendant

did not serve responses by that date, and Plaintiff attempted to resolve the lack of responses informally. (Id. ¶¶ 7–14.) But as of July 21, Defendant still failed to provide any responses, so Plaintiff filed the present motions. (Id. ¶ 7.) Because of Defendant's failure to respond, Plaintiff's motions to compel discovery pursuant to Code of Civil Procedure sections 2030.290 and 2031.300 are proper. Accordingly, Plaintiff's motions are granted.

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c).) The same sanctions are imposed when a party unsuccessfully opposes a motion to compel responses to requests for production. (Id., § 2031.300, subd. (c).) The Court need not impose sanctions with respect to a motion to compel if the Court finds that circumstances make the imposition of sanctions unjust. (Id., §§ 2030.290, subd. (c), 2031.300, subd. (c).) Such sanctions are authorized even when no opposition to a motion to compel is filed. (Rules of Court, rule 3.1348(a).) Here, Defendant has offered no brief in opposition or explanation as to why responses were not provided. Thus, sanctions are warranted.

Plaintiff's counsel alleges an hourly rate of \$625, which the Court credits. (Teshale Decl. ¶ 15.) Counsel testifies to having spent 2 hour reviewing the relevant discovery and drafting a brief, along with an additional 1.5 hours reviewing any opposition and drafting a reply and 0.5 hours spent appearing at the hearing on this matter with respect to each motion. (Id. ¶¶ 16–19.) Due to the simplicity of the present motions and their similarity, the Court credits counsel with 1.5 total hours for preparing the motions. It also credits counsel 1 hour for appearing at the hearing on this matter. Accordingly, the Court awards \$1,562.50 in sanctions ($[\$625 \text{ per hour}] \times [2.5 \text{ hours}] = \$1,562.50$).

Conclusion:

The Court grants Plaintiff's motions. The Court imposes \$1,562.50 in sanctions on Defendant's counsel, payable to Plaintiff.